

GZ: 2022-0.332.606 dated June 8, 2022 (Case Number: DSB-D124.4108)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

SUBJECT

The Data Protection Authority decides on the data protection complaint of Caroline A*** (complainant), represented by B*** Attorneys at Law OG, dated May 17, 2021, against Vera N*** (respondent), represented by C*** Attorneys at Law OG, regarding

1) violation of the right to confidentiality and 2) legality of data processing as follows:

-

The complaint is dismissed as unfounded.

Legal bases: Art. 2 para. 2 lit. c of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; § 4 para. 1 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; Art. 8 and Art. 52 para. 1 of the Charter of Fundamental Rights of the European Union (EU-CFR), OJ No. C 202 of June 7, 2016, p. 389.

REASONING

A. Submissions of the parties and procedural history

A.1. In a submission dated May 17, 2021, the complainant alleged a violation of the right to confidentiality and unlawful data processing. In summary, it was claimed that the respondent recorded a phone call on April 23, 2021, and forwarded this recording to third parties.

A.2. In a statement dated July 9, 2021, the respondent summarized that she indeed recorded a phone call between herself and the complainant. The respondent was friends with Wolfgang K***. From their mutual friendship, she was aware that the complainant had committed transgressions within the context of her cohabitation with Wolfgang K***. The respondent felt obligated to inform Wolfgang K*** about this. The information was shared prior to the phone call in question.

A.3. In a statement dated August 25, 2021, the complainant summarized that the respondent was also aware that she had undergone an abortion. Wolfgang K*** was not aware of the transgressions and the abortion. The respondent verbally communicated this information to Wolfgang K***. Subsequently, the respondent also transmitted a recording of a phone call to Wolfgang K***. During the phone call, the complainant's transgressions and her abortion were discussed.

A.4. In statements dated December 17, 2021, and April 19, 2021, the respondent summarized that Wolfgang K*** had a legitimate interest in being informed about the circumstances. In addition to the verbal communication, a recording of a phone call was also transmitted so that Wolfgang K*** would believe the respondent. The respondent also transmitted the recording to her sister because the complainant had contacted her multiple times. Furthermore, the respondent transmitted the recordings to Claudia L***, the wife of one of Wolfgang K***'s best friends. Claudia L*** was the first person to call Wolfgang K*** after receiving the information about the complainant's transgressions. The complainant, upon learning of the tape recording, herself conducted several phone calls within her circle of friends to present her perspective to the respective friends in advance. Wolfgang K*** also informed several people from their mutual friend circle about the transgressions. The respondent submitted two audio files to the Data Protection Authority.

A.5. In statements dated January 11, 2022, and May 4, 2022, the complainant essentially reiterated her previous submissions.

B. Subject of the complaint

The complainant has expressly based her submissions on a violation of the right to confidentiality according to § 1 para. 1 DSG as well as on unlawful data processing according to Art. 6 and Art. 9 GDPR.

From this, the subject of the complaint arises as the question of whether the respondent violated the complainant's right to confidentiality according to § 1 para. 1 DSG and breached the principle of legality of data processing according to Art. 5 para. 1 lit. a in conjunction with Art. 6 GDPR by

- a) recording a phone call between the complainant and the respondent, during which transgressions ("infidelities") in a cohabitation and an abortion of the complainant were discussed, and
- b) transmitting this recording via the instant messaging service "WhatsApp" to at least Wolfgang K*** (the former partner of the complainant), Claudia L*** (the wife of a friend of Wolfgang K***), and Esther N*** (the sister of the respondent).

However, it must first be examined whether the GDPR is even applicable in this case.

C. Findings of Fact

The complainant was friends with the respondent. From this friendship, the respondent had long been aware that there had been misconduct within the cohabitation between the complainant and Wolfgang K***. The misconduct was committed by the complainant. The respondent was also aware that the complainant had undergone an abortion.

On April 23, 2021, the respondent verbally informed Wolfgang K*** about the complainant's misconduct. At that time, Wolfgang K*** was not aware of the misconduct and the abortion.

Furthermore, on April 23, 2021, the respondent recorded a phone call with the complainant using a smartphone. There are two audio files. During the phone call, the complainant's misconduct ("infidelities") and her abortion were discussed. Subsequently, the respondent sent the recording to Wolfgang K*** via the instant messaging service "WhatsApp." The complainant was not aware that the phone call was being recorded. The two audio files are the basis for the findings of fact.

Additionally, the respondent forwarded the aforementioned recording to Claudia L***. Claudia L*** was the spouse of a friend of Wolfgang K***. After receiving the information about the misconduct, Wolfgang K*** called Claudia L***. According to the respondent, Claudia L*** inquired about the recording from the respondent.

Finally, the respondent shared the mentioned recording with her sister, Esther N***. According to the respondent, the complainant contacted Esther N*** several times by phone to discuss the incident. The complainant did not give consent for the creation and transmission of the aforementioned recording.

Assessment of Evidence: The findings arise from the consistent statements of both the complainant and the respondent and are undisputed. In particular, the respondent explicitly acknowledged the verbal communication as well as the subsequent creation and transmission of the conversation recording.

The audio files mentioned in the findings of fact were submitted as part of the respondent's statement on December 17, 2021 (AUDIOFILE-XYZ) and are included in the case file. The content of the audio files is known to the parties.

D. Legally, it follows that:

D.1. Legality of Data Processing

a) Regarding the "household exception" of the GDPR

It must first be examined whether the present case falls within the material scope of the GDPR (and consequently the DSG):

According to Art. 2 para. 2 lit. c, the GDPR does not apply to the processing of personal data by natural persons for the exercise of exclusively personal or family activities (commonly referred to as the "household exception" or "triviality clause").

The regulation of the household exception represents a balancing decision by the Union legislator regarding the right to the protection of personal data, which is primarily established in Art. 8 of the EU Charter of Fundamental Rights. According to Art. 52 para. 1 of the EU Charter, restrictions on the rights and freedoms guaranteed by it must therefore be provided for by law and respect the essence of those rights and freedoms.

The criterion for differentiation is the absence of any reference to a professional or economic activity. The central criterion for the applicability of the "household exception" – and thus for the non-applicability of the GDPR – is the attribution of data processing to the private sphere (cf. Heißl in Knyrim [ed.], *DatKomm* Art. 2 GDPR, para. 70).

It should be noted that the terms "personal" and "family" refer to the activity of the person processing personal data, and not to the person whose data is being processed (cf. the judgment of the CJEU of

July 10, 2018, C-25/17 para. 41 with references).

The term "family" is not to be interpreted strictly in family law terms but includes, regardless of marriage and parentage, other relationships that are considered "familial" by common understanding. In this respect, it is irrelevant whether a formal bond exists or whether personal relationships are based purely on informal grounds (cf. Ernst in Paal/Pauly [ed.], General Data Protection Regulation. Commentary, Art. 2, para. 18; cf. the judgment of the OGH of June 23, 2021, 6 Ob 56/21k, according to which even merely "loose acquaintances" in the form of not closely known "Facebook friends" do not oppose the application of the "household exception," provided it is a private Facebook profile and is not used for professional or economic purposes).

The GDPR itself mentions, for instance, the conduct of correspondence or the use of social networks and online activities within the context of personal or family activities (cf. Recital 18 GDPR). However, this only applies insofar as data is exchanged in closed groups that have no connection to the professional or economic activities of the users (cf. Ennöckl in Sydow [ed.], European General Data Protection Regulation. Commentary, Art. 2, para. 13; see also the previously cited judgment of the CJEU of July 10, 2018, C-25/17, para. 42 with references, according to which an activity cannot be considered "exclusively personal or family in the sense of this provision if it involves making personal data accessible to an unlimited number of persons, or if it extends even partially into the public sphere and thus targets an area outside the private sphere of the person processing the data").

Based on this case law of the CJEU, the OGH has already stated that data processing in connection with a private Facebook profile, which is not connected to any professional or economic activity, falls under the "household exemption" (cf. the previously cited judgment of the OGH of June 23, 2021, 6 Ob 56/21k).

Consequently, the "household exemption" also applies to the exclusively private use of services such as WhatsApp, provided that it does not involve unrestricted publication of personal data on the internet (cf. Bergauer in Jahnel [ed.], GDPR. Commentary, Art. 2, para. 27).

b) In the matter

Applied to the present case, these considerations mean the following:

As established, the respondent transmitted the relevant recording using the instant messaging service "WhatsApp" to a closed and limited group of individuals – namely Wolfgang K*** (the former partner of the complainant), Claudia L*** (the spouse of a friend of Wolfgang K***), and Esther N*** (the sister of the respondent).

Despite extensive investigative proceedings, there are no indications that this data processing is in any way connected to a professional or economic activity.

The respondent has convincingly demonstrated that the recording was made solely for the purpose of providing evidence of what she referred to as the "misconduct of the complainant" and subsequently transmitted to the aforementioned individuals.

Whether the relationship between the respondent and Wolfgang K*** was a friendship or – as claimed by the complainant – merely a "loose acquaintance" can remain open (cf. again the previously cited judgment of the OGH of June 23, 2021, 6 Ob 56/21k and the above considerations).

What is decisive is that the data processing relevant here is an exclusively private matter within a limited circle of acquaintances.

c) Summary and result

The exception provision of Art. 2 para. 2 lit. c GDPR is applicable, as the creation and transmission of the relevant recording using "WhatsApp" to individually specified recipients (and not to an indefinite or unlimited public audience) was carried out in the context of correspondence conducted on a personal basis.

Since the regulation is not applicable, there can consequently be no violation of the principle of lawfulness of data processing according to Art. 5 para. 1 lit. a in conjunction with Art. 6 GDPR.

D.2. Right to confidentiality

a) Relationship between § 1 para. 1 DSG and Art. 2 para. 2 GDPR

In the next step, the relationship between the GDPR and the DSG regarding the exceptions mentioned in Art. 2 para. 2 GDPR must be addressed.

According to Art. 16 para. 2 TFEU, there is a Union competence to enact provisions concerning the protection of natural persons in relation to the processing of personal data by the Member States in the context of activities that fall within the scope of Union law.

To the extent that a factual situation falls within the scope of Art. 8 EU Charter, any constitutional provisions that provide the same guarantee must remain "in force" to the extent of this conformity, and the assessment is to be made exclusively according to the Union legal provision (cf. recently the decision of the German Federal Constitutional Court of November 6, 2019, GZ 1 BvR 276/17, para. 47 et seq.; see also VfSlg. 19.632/2012, where the Constitutional Court has already stated that in the case of conformity between constitutionally guaranteed rights and the EU Charter, it uses the latter as a standard of review).

In the present case, it cannot be said that the scope of protection of § 1 DSG exceeds that of Art. 8 EU Charter, so that § 1 para. 1 DSG does not come into application at all.

But even if one were to see a case of application of § 1 DSG, the complaint would not be successful: The (statutory) provision of § 4 para. 1 DSG declares the GDPR applicable for the wholly or partially automated processing of personal data as well as for the non-automated processing of personal data that is stored or will be stored in a filing system, without specifically referring to the exceptions in Art. 2 para. 2 GDPR.

In this regard, however, the provisions of the GDPR are granted a fundamentally unrestricted material scope of application at the national level (cf. Kunnert in Bresich/Dopplinger/Dörnhöfer/Kunnert/Riedl, DSG § 4, note 3), so that processing operations excluded from the scope of the GDPR under Art. 2 para. 2 lit. c GDPR are also not covered by the DSG (cf. ErlAB, 1761 BlgNR. XXV GP, p. 4).

The Data Protection Authority does not overlook that the "household exception" stipulated in Art. 2 para. 2 lit. c GDPR is essentially identical in content to the predecessor provision of Art. 3 para. 2 second bullet point of Directive 95/46/EC (Data Protection Directive) and that, according to the relevant case law of the CJEU, the Member States were not prevented from extending the scope of national legal provisions enacted to implement the Data Protection Directive to areas not covered by the scope of the Data Protection Directive, as long as no other provision of Community law is contrary to this (cf. the already cited judgment of the CJEU of November 6, 2003, C-101/01, para. 98).

The Austrian legislator made use of this possibility created under the Data Protection Directive and established specific data protection regulations for processing activities for private or family purposes in the earlier provision of § 45 DSG 2000 (cf. original version BGBl. I No. 165/1999). The provision just cited did not provide for a general exception from the fundamental right to data protection, which would not have been possible due to its statutory nature (cf. Jahnel, Handbook on Data Protection Law, pp. 433 ff).

With regard to the current legal situation, it should be emphasized that the GDPR itself – due to the essentially verbatim adopted provision of the "household exception" – does not fall short of the scope of protection of the Data Protection Directive, but a provision similar to § 45 DSG 2000 was not (further) provided by the Austrian legislator in the DSG.

From this, it can be concluded that the Austrian legislator did not intend to extend the scope of protection of the DSG to circumstances that exclusively concern personal or family matters.

b) Result

Based on the above considerations, it follows that the provision of Art. 2 para. 2 lit. c GDPR is also applicable in connection with an alleged violation of § 1 para. 1 DSG and consequently the scope of the DSG is not opened.

Thus, due to the lack of application of § 1 para. 1 DSG, there can also be no violation of the right to confidentiality.

It was therefore decided accordingly.